

turbance in an unconstitutional manner. We explained that the doctrine of official immunity from § 1983 liability, although not constitutionally grounded and essentially a matter of statutory construction, was based on two mutually dependent rationales:

“(1) the injustice, particularly in the absence of bad faith, of subjecting to liability an officer who is required, by the legal obligations of his position, to exercise discretion; (2) the danger that the threat of such liability would deter his willingness to execute his office with the decisiveness and the judgment required by the public good.” 416 U. S., at 240.

The opinion also recognized that executive branch officers must often act swiftly and on the basis of factual information supplied by others, constraints which become even more acute in the “atmosphere of confusion, ambiguity, and swiftly moving events” created by a civil disturbance. *Id.*, at 246–247. Although quoting at length from *Barr v. Matteo*,²⁴ we did not believe that there was a need for absolute immunity from § 1983 liability for these high-ranking state officials. Rather the considerations discussed above indicated:

“[I]n varying scope, a qualified immunity is available to officers of the executive branch of government, the variation being dependent upon the scope of discretion and responsibilities of the office and all the circumstances as they reasonably appeared at the time of the action on which liability is sought to be based. It is the

²⁴ 416 U. S., at 247, quoting *Barr v. Matteo*, 360 U. S., at 573–574. The Court spoke of *Barr v. Matteo* as arising “[i]n a context other than a § 1983 suit.” 416 U. S., at 247. Elsewhere in the opinion, however, the Court discussed *Barr* as arising “in the somewhat parallel context of the privilege of public officers from defamation actions.” 416 U. S., at 242. The Court also relied on *Spalding v. Vilas*, 161 U. S. 483 (1896), without mentioning that that decision concerned federal officials. 416 U. S., at 242 n. 7, 246 n. 8.